

Opinion of the Court

42 U. S. C. § 1983, are by now familiar. Section 1983 on its face admits of no defense of official immunity. It subjects to liability “[e]very person” who, acting under color of state law, commits the prohibited acts. In *Tenney v. Brandhove*, 341 U. S. 367, 376 (1951), however, we held that Congress did not intend § 1983 to abrogate immunities “well grounded in history and reason.” Certain immunities were so well established in 1871, when § 1983 was enacted, that “we presume that Congress would have specifically so provided had it wished to abolish” them. *Pierson v. Ray*, 386 U. S. 547, 554–555 (1967). See also *Newport v. Fact Concerts, Inc.*, 453 U. S. 247, 258 (1981). Although we have found immunities in § 1983 that do not appear on the face of the statute, “[w]e do not have a license to establish immunities from § 1983 actions in the interests of what we judge to be sound public policy.” *Tower v. Glover*, 467 U. S. 914, 922–923 (1984). “[O]ur role is to interpret the intent of Congress in enacting § 1983, not to make a freewheeling policy choice.” *Malley v. Briggs*, 475 U. S. 335, 342 (1986).

Since *Tenney*, we have recognized two kinds of immunities under § 1983. Most public officials are entitled only to qualified immunity. *Harlow v. Fitzgerald*, 457 U. S. 800, 807 (1982); *Butz v. Economou*, 438 U. S. 478, 508 (1978). Under this form of immunity, government officials are not subject to damages liability for the performance of their discretionary functions when “their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known.” *Harlow v. Fitzgerald*, 457 U. S., at 818. In most cases, qualified immunity is sufficient to “protect officials who are required to exercise their discretion and the related public interest in encouraging the vigorous exercise of official authority.” *Butz v. Economou*, 438 U. S., at 506.

We have recognized, however, that some officials perform “special functions” which, because of their similarity to func-